

Public International Law

CHAPTER FIVE TERRITORY UNDER INTERNATIONAL LAW

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The Concept of Territorial Integrity

- International law is based on the concept of the state.
- **No state can exist without territory.**
- International disputes pertaining to land title as well as the precise determination of state boundaries, are the subject of international proceedings.
- In international community, all States possess territory – although there are examples of ‘micro-states’ i.e. the Holy See.

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- **The Sovereign Military Hospitaller Order of St John of Jerusalem of Rhodes and Malta also known as the Sovereign Order of Malta, claims statehood but no longer possesses territory.**
- **In 1978, the Order was ousted from its last surviving possession.**
- **Afterward, it has occupied certain areas of Rome.**
- **In fact, the few States recognize the Order, therefore, it is State with no boundary.**

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- **Territory refers to a geographical concept.**
- Land, rivers, lakes, reefs, islands, internal or international waters, territorial space, and air space are all included in it.
- Territory can be subject to one of four types of regimes, one of which is territorial sovereignty.
- They are as follows:
- **Res nullius**: territory may be acquired by the States, but it has not yet been granted territorial sovereignty.

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- **Res communis**: territory that cannot be governed by a state such as the high seas and the exclusive economic zones.
- **Terra nullius**: territory that has never belonged to any other State, but these States have their own status.
- We will discuss about territorial sovereignty in the next section.
- **Territorial integrity** emerged as a general principle of international law during the course of the 19th century.
- It refers to the territorial '**oneness**' or '**wholeness**' of the State.

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- As norm of international law, it protects the territorial framework of the independent State and is an essential foundation of the sovereignty of States.
- ***Territorial integrity means both territorial preservation and territorial sovereignty*** .
- It is the principle under international law that gives the right to sovereign states to defend their borders and all territory in them from another state.

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- **Article 2 (4) of the UN Charter**: “All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in other manner inconsistent with the Purpose of the United Nations.”
- Conversely, it states that imposition by force of a border change is **act of aggression**.

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- **What are the general implications of the concept of territorial integrity?**
- In the first place the protection of a state's territorial integrity guarantees the continuing existence of a state in its current borders and renders unilateral changes of the territory by forceful means of third states a violation of international law.
- However, the concept protects against more than changes to the borders between states.
- **It is in almost all legal documents paired with the notion of political independence .**

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- **The territory is recognized as more than just a necessary requirement of statehood .**
- The law as it stands closely connects territorial integrity and political independence because the territory is recognized as the spatial framework and necessary condition for the realization of political independence.
- The territory is exclusive zone in which the political independence of a state can find its expression and where foreign governments may not – as a matter of principle – interfere.

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- As a consequence, territorial integrity requires more than protection against permanent changes to borders, but demands protection against all sorts of interventions into a state's territory from outside.
- ***H. Lauterpatcht***: it is especially coupled with 'political independence' synonymous with territorial inviolability.
- This close link between the concept of territorial integrity and political independence demonstrates the necessity for the potentially problematic determination of what the protected political will and its territory actually is.

Territorial Sovereignty

- As you know that, international community comprises of States, and ***the existence of the States are defined by their territory and sovereignty***.
- The sovereignty sits at heart of the international law.
- ***The title to territory is based on sovereignty***.
- So, it is necessary to discuss about the territorial sovereignty in brief.

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- **Sovereignty in relation between the States signifies independence** .
- Independence in regard to portion of the globe is their right to exercise therein, to the exclusion of any other State, the functions of a State.
- Therefore, State exercises its supreme authority within its territory.
- The territorial sovereignty enables a State to exercise its fullest measure of sovereignty powers over its land territory.

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- In order to function as a State, the State must possess territory.
- **Territorial sovereignty normally denotes a political and legal expression, which designates a relationship of power, supremacy or independence between an actor, the state, and an object, the territory.**

New States and Title to Territory

- **The concept of 'title' is used in public international law to show that a territory belongs to a State** .
- Title to territory is usually defined as 'a vestitive fact of territorial sovereignty' or 'a source of territorial sovereignty'.
- A State acquiring such title is vested with sovereignty that is opposable erga omnes.
- In other words, when a State has title to a certain territory, that State's control over the territory in question is legally justified and other States must respect that State's control over said territory.

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- **At the same time, territorial control without title is never accepted as legitimate .**
- **Acquisition of Territory**
- The expression ' acquisition of territory' is usually employed as meaning the establishment of sovereignty over a given piece of land.
- The acquisition of territory by a state can be more correctly referred to as acquisition of territorial sovereignty, by an existing state and member of the international community over another State.

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- **At the very outset, it needs to be made clear that the recognition of a new state cannot be considered as the acquisition of territory**.
- There may also be cases where private individuals or corporations gain certain rights or even authority over a territory which was not under the territorial supremacy of any recognized State.
- Such cases are not again not within the scope of modes of acquisition of state territory.

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- **Boundary Treaties and Boundary Awards**
- **Boundary Treaties**: are treaties, but are distinctive.
- They constitute a special category of treaties.
- They may constitute a root of title to territory and, as such, will have widespread effect within the international community going far beyond the confines of the treaty itself.
- They additionally can affect the critical date at which territorial rights are crystallized as between the particular parties.

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- It may shift the pertinent date of crystallization of territorial rights from the date of independence of the relevant parties to the date of the treaty itself.
- Treaties generally bind only those states that have signed and ratified (or acceded to) them.
- They do not constitute obligations for third states.
- Further, provisions of a treaty as a matter of general principle exist within the framework of that instrument, so that once ceasing to be a valid agreement for whatever reason, the obligation created thereby naturally fall away.

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- However, boundary treaties are different.
- They may establish an objective territorial regime which is valid erga omnes and thus applicable to third parties. (Eritrea/Yemen case)
- Further, such a regime once created by the treaty will take on an existence separate and distinct from it, which is thus capable of continuing irrespective of the treaty, even if the treaty in question itself ceases to apply. (Libya/Chad (as French colony at the time) case)

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- Further cases towards this: Nicaragua v. Colombia and Costa Rica v. Nicaragua
- ***This objectivisation of boundaries is reinforced by two further doctrines***.
- First, a boundary established by treaty is unaffected by any succession of States.
- In principle, the territory devolves upon the successor State on the basis of the pre-existing boundaries.

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- **Article 11 of the Vienna Convention on Succession of States in Respect of Treaties (1978), albeit in rather cautious and negative terms, specifies that:**
- **A succession of States does not as such affect:**
 - A. A boundary established by treaty; or**
 - B. Obligations and rights established by a treaty and relating to the regime of a boundary.**

Mode of Acquisition

- The five modes of acquiring territory have traditionally been distinguished into cession, occupation, accretion, subjugation and prescription.
- Before looking into these modes of acquisition which have been derived from Roman law rules on property it is necessary to understand that they are no longer appropriate or applicable.
- However, these “modes” of acquisition of territory still help us explain how countries got their titles.

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- **Also, these methods are divided into two categories: original and derivative mode of acquisition**.
- This division is on the basis of whether the title given to the state is derived from a prior owner–state or not,
- **Hence, only cession is a derivative mode**.
- **Cession**
- It is the transfer of sovereignty over state territory by the owner state to another state.

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- Its basis lies in the intention of the concerned parties to transfer sovereignty over the territory in question, and it rests on the principle that the right of transferring its territory is a fundamental attribute of the sovereignty of a State.
- It may compromise a portion of the territory of the ceding State or the totality of its territory.
- In the latter case, the ceding State disappears and merges into the acquiring State.

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- To constitute a cession it must be intended that the sovereignty will pass.
- The only form in which a cession can occur is an agreement normally in the form of a treaty between the ceding and the acquiring state; or between several states including the ceding and cessionary states.
- A lot of the time it is an outcome of peaceable negotiation or war, and may be without compensation although certain duties could be imposed in the acquiring state.

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- Such cessions are agreed upon by the interested states for different motives and for different purposes, like a gift or voluntary merger.
- An example is when **Austria**, during its war with **Prussia** and **Italy** in 1866, ceded Venice to France as a gift.
- Later, France ceded Venice to Italy.
- **Occupation**
- It is a state's international claim of sovereignty over territory that does not belong to any other states.

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- Jennings writes it is “the appropriation by a state of a territory, which is not at the time subject to the sovereignty of any other state.”
- Article 42 of the Hague Regulations of 1907 defines occupation as follows:
- “territory is considered occupied when it is actually placed under the authority of the hostile army. The occupation extends only to the territory where such authority has been established and can be exercised.”

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● **Accretion**

- It refers to the physical expansion of an existing territory through the geographical process.
- It is the name for the increase of land due to some new formations.
- Such formation may be a modification of the existing state territory for example, when an island rises within a river (not increasing the territory, only the land) or when an island emerges in the maritime belt.

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- It is a customary rule of international law that enlargement of territories by new formations, takes place ipso facto by accretion, without the state concerned taking any special step for the purpose of extending its sovereignty.
- Hence, accretion too is a direct mode of acquisition of territory.
- **Subjugation**
- It is the acquisition of territory by conquest followed by annexation.

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- **This direct mode of acquisition is often called title by conquest .**
- In those days war wasn't illegal and so making of war was recognized as a sovereign right.
- There is a very fine distinction between cession and subjugation.
- Like compulsory cession, conquest followed by annexation would transfer territory by compulsion, but unlike cession, it involved no agreement between the concerned parties.

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- In most cases, the victors in a war enforced a treaty of cession.
- Simple title by subjugation is rare.
- Article 10 of the League of Nations Covenant made it unlawful to wage war for the purpose of acquiring territory.
- The acquisition of territory through the use of force is also outlawed by the Charter of the UN, which obliged the member States to refrain from the use of force against the territorial integrity or political independence of any State.

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- **Prescription**:

- It can be defined as 'the acquisition of sovereignty over a territory through a continuous and undisturbed exercise of sovereignty over it during such a period as it is necessary to create under the influence of historical development the general conviction that the present condition of things is in conformity with the international order'.
- There was no rule laid down with regard to the length of time or other circumstances necessary to create such a title by prescription.

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- The conditions differ from case to case basis.
- As long as other states keep up protests and claims, the actual exercise of sovereignty isn't disturbed, nor is there the general conviction that the present condition of things is in conformity with international order.
- As such protests cease, however, there may be a situation arising where it becomes in conformity with the international order.

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- The question of what time and under what circumstances such a condition of things arises is one of fact merely.
- **Loss of State Territory**
- Now that we have discussed all modes of acquiring territory or rather acquiring sovereignty over territory we can easily point out the corresponding methods of losing state territory.
- These are cession, dereliction, operation of nature, subjugation, prescription and there is a sixth mode that is revolt.

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- Loss of territory by subjugation, cession and prescription is pretty straightforward and requires no further explanation.
- It is simply the corresponding loss of territory due to the gain of that territory by another state.
- Revolt, on the other hand, has been accepted as a mode of losing territory to which there is no corresponding mode of acquisition.
- There is no hard and fast rule regarding the time when a state which has broken off from another state can be established permanently as another state.

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- A revolt, however, seems to be more of a political issue than a legal mode of loss of territorial sovereignty.
- Dereliction as a mode of losing territory corresponds to occupation.
- It frees a territory from the sovereignty of the present state possessor.
- When the owner state completely abandons a territory with the intention of withdrawing from it permanently and relinquishing sovereignty over it dereliction is effected.

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- Actual abandonment alone cannot amount to dereliction as it is assumed that the owner will and can retake possession.
- Hence, just like occupation there has to be an abandonment of territory (corpus) and an intention (animus) to withdraw to.
- **Territorial integrity and self-determination**
- The principles of territorial integrity and self-determination are two important principles which apply to international law and politics.

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- They define the relationships which a country should have with others especially regarding global politics.
- The principle of self-determination explains that countries have the right to freely determine their international politics status and sovereignty without outside or external interference.
- The principle of territorial integrity on the other hand explains that countries should avoid promoting border changes or secessionist movements in other countries.

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- Such movements or changes are viewed as acts of aggression.
- Although, these two principles play an important role in international politics, they sometimes come into conflict due when being applied.
- It is important to access these principles in more detail in order to understand the areas in which conflict may be experienced when implementing these two principles of international law.

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- **The Principle of Territorial Integrity**
- It was developed many centuries ago due to the belief that intruding into another territory is an act of aggression which justifies war.
- Many wars including the First and Second World War have been fought as a result of applying territorial integrity principle.
- The adoption of the UN Charter by countries supported territorial integrity.

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● **Benefits of the Principle**

- One benefit of territorial integrity principle is that it seeks to protect states from acts of aggression by other states.
- The territorial integrity protects the borders of states from external aggression acts by other states, and in doing so; the people within such territories are protected.
- The principle also upholds the sovereign nature of states and prevents interference from external parties or states.

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● **Weakness of the Principle**

- There are various weaknesses.
- It is seen to prevent the evolution of states.
- States are dynamic and they have a lifecycle which begins and ends over time.
- It is seen to ignore this view and it pushes for a fixed position on the territories of states.
- As a result, many states go into war when their territories are invaded instead of seeking mutual solutions to problems which face them.

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- It has seen to cause many past and present wars which may have been avoided if the principle was implemented in a peaceful and dynamic manner.
- **The Principle of National Self-Determination**
- It seeks to empower countries to freely determine their international politics status and sovereignty without outside interference.
- It can be traced to the mid-19th century although past historical events such as the American Revolution are seen as roots of self-determination principle.

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- There are 3 important theories which are linked to national self-determination.
- The realist theory of liberal internationalism promotes liberty within states and supports abolition of war.
- The realist theory which was applied during the Cold War supports the view that territorial integrity is more important than self-determination.

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- Cosmopolitan liberalism on the other hand supports the shift of political power to a global government, which would facilitate easy changing of boundaries.
- **Benefits of the Principle**
- It seeks to promote democracy.
- It advocates for the implementation of the will of the people without interference from external actors, and this is consistent with modern democracy.

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- It is beneficial for modern states which aim at implementing democracy and implementing the will of people.
- **Weakness of the Principle**
- One major weakness of this principle arises from the definitions associated with the principle.
- The principle uses words such as “**peoples**” which have not been defined in international law.

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- In UN resolutions, “peoples” is seen as a territorial unit’s entire population regardless of differences in characteristics of the population.
- However, in international law, minorities and other ethnic groups are not recognized as separate peoples.
- ***Conflict between the Principle of Territorial Integrity and Self-Determination***
- There is a conflict between them.

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- **The self-determination principle which advocates for countries to freely determine their international politics status and sovereignty without outside interference challenges the territorial integrity principle.**
- **This is because states are made legitimate by people, which means that people should be given freedom to choose territorial boundaries and states as they wish.**

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- It, therefore, conflicts with territorial integrity, which advocates for fixed territories among states which should be respected by the rest of the world to avoid acts of aggression.
- ***The Doctrine of Uti Possidetis juris or iuris***
- A Latin word stands for “as [you] possess under law”
- It is a principle of international law which provides that newly formed sovereign states should retain the internal borders that their preceding dependent areas had before their independence.

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● **International Boundary Rivers**

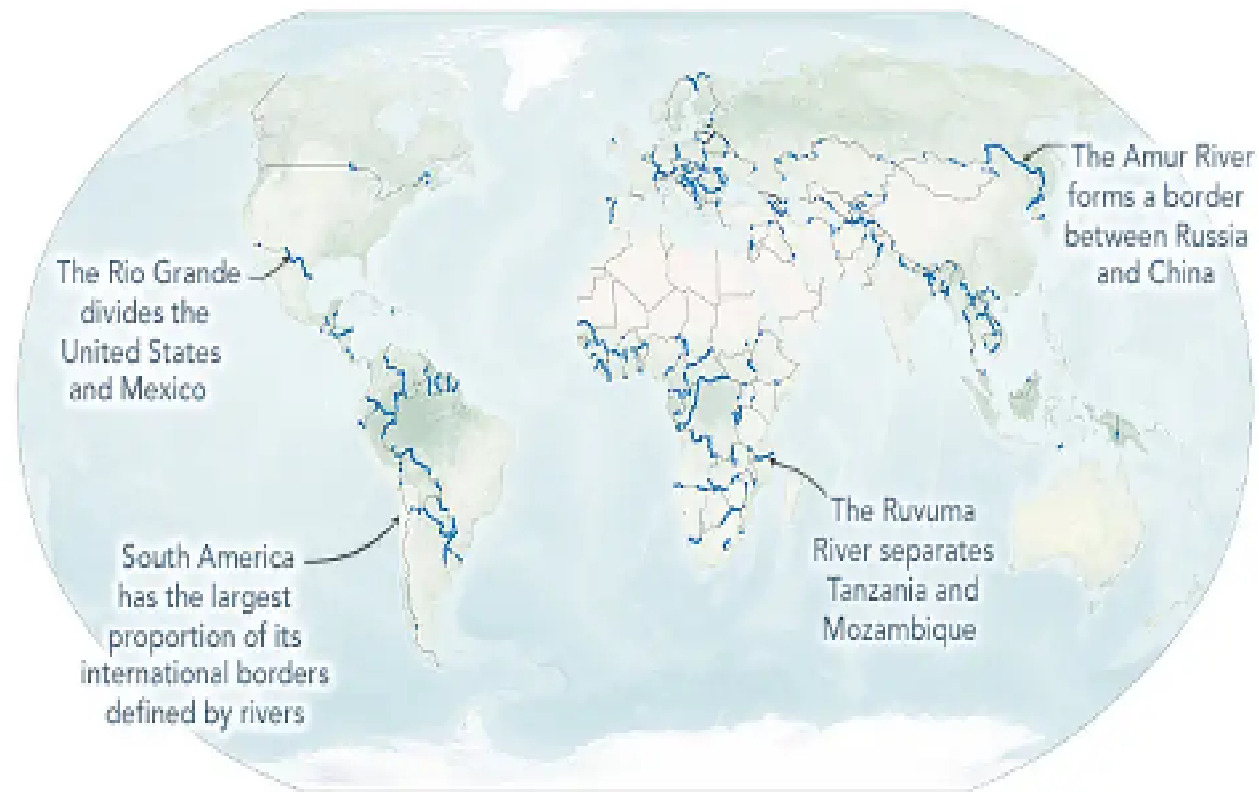
- Boundaries designate the geographic extent of a country are known as borders.
- Borders mark where one country ends and another begins.
- When a geographic features such as a mountain, lake or a river is used to mark the boundaries, it is known as a natural border.
- According to one study published in 2020, rivers account for 23% of international boundaries.

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- Rivers also form 17% of state and provincial borders worldwide, and 12% of all county-level local borders.
- NASA created a map from the study that highlighted the international borders formed from major rivers.
- All of the blue lines represent major rivers that serve as international borders.

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- **Map of rivers that form international borders**



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- **Rivers have been employed as an objectively identifiable and typically stable delineation of an international boundary between riparian states; the Rio Grande, the Danube and the River Uruguay provide, for example, relative certainty in identifying the limits of national sovereignty.**
- **The use of rivers to establish international boundaries is usually reflected in treaties concluded between states, sometimes after armed conflict or judicial or arbitral resolution and more usually after peaceful negotiations.**

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- **River boundaries, convenient though they have been in fostering good neighborly relations between territorial sovereigns, attract special legal problems.**
- **The obvious limitation of rivers as boundaries is that water is transitory.**
- **The paradox inherent in conceiving of water flowing between two states is a territorial boundary is that the passage of the water is necessarily temporary, while sovereignty imports the notion of permanence.**

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- Commentators have readily accepted the idea of transplanting the traditional concept of territorial sovereignty to rivers as international boundaries.
- Contemporary concerns are, however, to protect the environment and conserve water resources suggesting that states can no longer enjoy complete autonomy in their use of waters within their territorial jurisdiction.

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- The Institute of International Law's Madrid Resolution of 1911, for example, observed that states with a common river boundary 'are in a position of permanent physical dependence on each other which precludes the idea of the complete autonomy of each State in the section of the natural watercourse under its sovereignty.
- Throughout the 20th century and in the early years of the 21st, international tribunals have developed principles for shared water resources such as equitable and reasonable use and the obligation not to cause significant environmental harm.

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- Principles of delineation of a river boundary
- State practice is that those negotiating river boundaries have selected one of three principal means of locating the exact boundary:
 1. Geographic middle of the river or medium filum aquae
 2. Middle of the channel or thalweg
 3. Shore or bank of the river

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- ***The Common Heritage of Mankind***
- It is an ethical concept of international law.
- It establishes that some localities belong to all humanity and that their resources are available everyone's use and benefit, taking into account future generations and the needs of developing countries.
- It is intended to achieve aspects of the sustainable development of common spaces and their resources, but may apply beyond this traditional scope.

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- When first introduced in 1960's, it was a controversial concept and it remains so to this day.
- This controversy includes issues of scope, content and status, together with its' relationship to other legal concepts.
- **Core Elements of Common Heritages of Mankind**
- There is no concise, fully agreed upon definition of the term.
- Its feature depend upon the details of the regime applying it or the space/resource to which it applied.

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- There are a number of core elements, however:
 1. No state or person can own it (the principle of non-appropriation).
- They can be used not owned.
 2. The use of common heritage shall be carried out in accordance with a system of cooperative management for the benefit of all mankind. i.e. for the common good.
 3. It shall be reserved for peaceful purposes (preventing military uses)

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4. It shall be transferred to future generations in substantially unimpaired condition (protection of ecological integrity and inter-generational equity between present and future generations of humans).

● **Polar Regions**

- The polar regions provide a unique setting for the development of international law, in particular the law of the sea.

Continued

- The physical environments of the Arctic and Antarctic present their own special legal problems which call for prompt, novel solutions.
- There are no international institutions and few laws to govern these vast and once remote areas.
- **Leases**
- In international law, a lease is an arrangement whereby territory is leased or pledged by the owner–state to another state.

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- In such cases, sovereignty is, for the term of the lease, transferred to the lessee state.
- **Outer Space**
- Outer space, including the Moon and other celestial bodies, shall be free for exploration and use by all states without discrimination of any kind, on a basis of equality and in accordance with international law, and there shall be free access to all areas of celestial bodies.